

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition

Acquisition Plan Action ID: 36C247-26-AP-0487

1. **Contracting Activity:** Department of Veterans Affairs, VISN 07, Columbia Medical Center Department of Veterans Affairs, NCO7, in support of Columbia VA Health Care System (Station ID 544) 544-26-2-5798-0001.
2. **Nature and/or Description of the Action Being Approved:** Engineering station 544 is requesting authorization to award a new follow-on contract to Guidon Design, Inc. to provide AE design services. This will be a new single firm-fixed-price contract to provide solicitation support, construction period services, and site visits.

This authorization will support 544-22-115, Replace Domestic Water and Fire Piping Loop which is currently planned for construction on the FY26 VISN7 NRM Operating Plan. All AE services will be performed in conjunction with and in support of the solicitation and construction phases of the project. The AE contract will commence at the time of the construction solicitation and will be complete pending all accepted work and completion of all tasks are finalized and accepted by the government.

The program for this project requires AE design services and a follow-on construction contract to complete the requirement. Sole source authorization is requested for AE construction period services only. The construction contract is anticipated to be funded and executed in FY26 and does not require sole source justification.

Funding for construction period services and site visits is to be based on the approved construction year rather than the initial design year.

3. **Description of Supplies/Services Required to Meet the Agency's Needs:**
The intent of this authorization request is to award a single new contract to the

previous designer of record that generated the preliminary design files, wrote all narratives and specifications, conducted meeting discussions with the VA representatives, and signed and sealed all construction documents used to solicit for the construction award. AE designs services are required “to” support the construction phase by responding to pre-proposal RFIs, reviewing of construction RFIs and submittals, performing site visits and inspections, system commissioning, and modification support.

The estimate contract amount is \$441,075. The estimated period of performance is 687 calendar days from award.

4. **Statutory Authority Permitting Other than Full and Open Competition:**

41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by RFO FAR 6.103-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in [VAAR 819.7008 \(DEVIATION\)](#) or [VAAR 819.7009 \(DEVIATION\)](#)- up to \$5,000,000. Check the specific VAAR clause used below:

(X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business; or

() 819.7009 Sole source awards to a certified veteran-owned small business

5. **Demonstration that the Contractor’s Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority)**

The recommended AE design firm meets all professional qualifications as identified by the FAR part 36 and is a certified SDVOSB provider with no active exclusions. The AE design firm is uniquely qualified to perform construction period services because the firm maintains the professional liability as the designer of record (DOR) and is responsible for the technical accuracy and completeness of all work leading to the construction document development. In addition, the AE firm will be the responsible party should any design errors and omissions surface during the construction phase of the project.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by [RFO FAR 6.301](#) and, if not, which exemption under [RFO FAR 5.101\(b\)\(1\)](#) applies:**

The original AE contract was solicited via open market competition to certified SDVOSB providers qualified to perform work under NAICS code(s) [541310 Building Architectural Design Services and/or 541330 Engineering Design Services]. The selection process underwent the qualifications review and ranking process as governed by FAR part 36.6. Construction period service experience was conveyed as an evaluation on the pre-solicitation and reviewed by the evaluation board as part of the original design contract award. The original contract was awarded to the highest rated firm as recommended by the evaluation board.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and**

Reasonable: A new scope of work and independent government cost estimate (IGCE) will be generated for the follow-on contract. The recommended AE firm will be issued a request for proposal that will include the updated scope of work and new VA 6298 Form to capture the current cost to complete all tasks. The proposal will undergo a technical evaluation and cost comparison to the IGCE. Recommendations and/or revisions will be provided to the contracting officer. The final cost will be negotiated resulting from discussions with the AE firm in effort to generate a fair and reasonable cost for the contract award.

8. **Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:**

Market research was conducted at the time of the original project submission. Additional market research was not conducted because of the unique nature of the professional liability currently held by the original contractor. No other firm will possess this qualification.

9. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** Selection of a new AE firm will require a new source selection process to be completed. The time duration to complete these tasks will

prolong the construction contract award because AE services will be required for construction contract solicitation support to answer RFIs and possible update drawings and specifics based on RFI responses. This puts the construction award at risk of being awarded in the operating plan funding year and jeopardizes funding. Procuring a separate contract for AE services for CPS will generate additional time with the RFI and submittal review process and greatly increase the risk of a government-generated delay by adding an additional AE team member to review the submittals. AE firms typically require seven business days to review and respond to each submittal; as such, the additional step will cause the construction contractor to potentially miss procurement milestones.

10. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** No additional sources were sought to indicate interest due to the professional liability requirements for this procurement.
11. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** Future AE procurements will be solicited, competed, and awarded per FAR and VAAR regulations. Construction period services and site visits will be included with future AE acquisitions; however, the funding for the CPS and site visits will be based on the approved construction year of the project and not the initial AE contract design year funding.
12. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Prepared By: Kenyon E. Dulaney
Contract Specialist

KENYON
DULANEY

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KENYON DULANEY
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Name

Date

13. **Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):**

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

Name: Zaire Naylor/ Contracting Officer

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NAYLOR

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